

Case	Title / Nature of Case
9:00 AM	
Line 1	
22-CIV-00069	MARITA ZWEIFLER VS. ERNEST EGAN, ET AL

MARITA ZWEIFLER
ERNEST EGAN

PRO SE
JOEL M. WESTBROOK

Plaintiff/Cross-Defendant's Motion to Strike Cross-Complaint Pursuant to Code of Civil Procedure §§ 435 and 436

TENTATIVE RULING:

Plaintiff/Cross-Defendant Marita Zweifler's ("Zweifler") Motion to Strike Cross-Complaint is DENIED.

The motion is untimely. Zweifler was served on or about November 21, 2025, and then Zweifler filed an answer on January 29, 2026. The time to plead has thus long expired. Zweifler did not file the present motion to strike at the time of or in place of her Answer. The motion is untimely and is thus denied on that basis.

The motion is improper as well. A motion to strike must quote in full the portions sought to be stricken. See, CRC Rule 3.1322(a). Here, Zweifler does not quote any portion of the cross-complaint, but instead improperly seeks to strike the entirety of the cross-complaint. As part of the required meet and confer process which also did not happen here, Zweifler was required to "identify all of the specific allegations that it believes are subject to being stricken and identify with legal support the basis of the deficiencies." Code of Civil Procedure ("CCP") § 435.5(a)(1) (emphasis added). A motion to strike is not proper to attempt to strike an entire cross-complaint, largely on the basis that one disagrees with its allegations.

CCP Section 437 provides:

- (a) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.
- (b) Where the motion to strike is based on matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, such matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit.

Zweifler's motion instead is based on improper evidentiary arguments. Zweifler contends that an email to TPA Project Finance on September 14, 2023 and a UCC-1 statement to be filed in Florida, are allegations that are "demonstrably false." Motion, pg. 4, lines 4-11. Zweifler then argues that she "has denied sending this email" and that she did not file the UCC-1 statement. Motion pg. 4, lines 17 & 28 In general, all Zweifler does is attack potential evidence, which are ultimately issues for trial. She fails to present a proper basis to strike that appears on the face of the challenged pleading as written. Thus, the motion is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 2

22-CIV-00069 MARITA ZWEIFLER VS. ERNEST EGAN, ET AL

MARITA ZWEIFLER
ERNEST EGAN

PRO SE
JOEL M. WESTBROOK

Plaintiff's Motion to Deem Requests for Admission Admitted; Request for Sanctions

TENTATIVE RULING:

Plaintiff Marita Zweifler's ("Zweifler") Motion to Deem Requests for Admission Admitted and Request for Sanctions are DENIED.

On April 14, 2026, Zweifler filed a special motion to strike (SLAPP) under Code of Civil Procedure ("CC") Section 425.16. In pertinent part, that code provides:

All discovery proceedings in the action shall be stayed upon the filing of a notice of motion made pursuant to this section. The stay of discovery shall remain in effect until notice of entry of the order ruling on the motion. The court, on noticed motion and for good cause shown, may order that specified discovery be conducted notwithstanding this subdivision.

CCP § 425.16(g)

There was no prior motion to open discovery after the SLAPP motion was filed. On April 22, 2026, Zweifler then served the Requests for Admissions ("RFA") that are at issue in this motion. Defense counsel attempted to convince Zweifler to withdraw this motion, but Zweifler never responded. Westbrook Decl., ¶ 10-11, Exh. D. The automatic stay on discovery is expressly written into the code, and it is indeed automatic and self-executing. *Britts v. Superior Court* (2006) 145 Cal.App.4th 1112, 1125. This Court had not issued a past Order to open discovery which is necessary under these circumstances for Zweifler to have served the RFA's, and if no response, to then move to compel/admit the RFA's. Defendant argues that "[t]his motion is one of four meritless motions that Zweifler has filed." The Court agrees that this motion is indeed meritless and it is DENIED. Because the motion fails, so fails her related request for sanctions.

Conversely, Defendant is entitled to some monetary sanctions, which were duly noticed in the opposition and attorney declaration. Opp., pg. 4-5, ¶ D; Westbrook Decl., ¶ 12-13. CCP Section 2023.030 provides:

To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

(a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses,
